

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PERNILLA EKBERG,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and P.O. JOHN DOE,

Defendants.

-----X
To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: August 20, 2015
New York, New York



ELIOT S. BICKOFF
ASTA & ASSOCIATES, P.C.
Attorney for Plaintiff
450 Seventh Avenue, Suite 2205
New York, NY 10123
(212) 244-6555

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10007

Index No.:

Date Filed:

SUMMONS

The Plaintiff designates New York
County as the place of trial.

The basis of venue is the Plaintiff's
address.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PERNILLA EKBERG,

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and P.O. JOHN DOE,

Defendants.

-----X

Plaintiff, PERNILLA EKBERG, complaining of the Defendants, by her attorneys, ASTA & ASSOCIATES, P.C, respectfully alleges, upon information and belief, at all times hereinafter mentioned as follows:

AS AND FOR A FIRST CAUSE OF ACTION IN NEGLIGENCE

1. That at all times hereinafter mentioned, the Plaintiff is and was a resident of the County of New York, State of New York.
2. That at all times hereinafter mentioned defendant, THE CITY OF NEW YORK (hereinafter, "CITY") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned defendant CITY was and is a municipal corporation doing business in the State of New York.
4. That on December 2, 2014 a notice of claim in full compliance with Section 50-e of the General Municipal Law was duly served and filed with defendant CITY, which notice was served and filed within 90 days after the cause of action accrued and before the commencement of this action, and that this action was commenced within one year after its accrual and was not

commenced until after 30 days had elapsed since service of said notice and adjustment thereof has been neglected and refused.

5. That defendant, CITY, conducted an examination pursuant to law on March 5, 2015.

6. That plaintiff has duly complied with the demand of defendant, CITY, for an examination pursuant to law.

7. That at all times hereinafter mentioned defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter, "NYPD") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

8. That at all times hereinafter mentioned defendant, NYPD was and is a municipal corporation doing business in the State of New York.

9. That on December 2, 2014 a notice of claim in full compliance with Section 50-e of the General Municipal Law was duly served and filed with defendant NYPD, which notice was served and filed within 90 days after the cause of action accrued and before the commencement of this action, and that this action was commenced within one year after its accrual and was not commenced until after 30 days had elapsed since service of said notice and adjustment thereof has been neglected and refused.

10. That defendant, NYPD, conducted an examination pursuant to law on March 5, 2015.

11. That plaintiff has duly complied with the demand of defendant, NYPD, for an examination pursuant to law.

12. That at all times hereinafter mentioned, upon information and belief, the true names of defendant Police Officer John Doe (fictitious name) are unknown to plaintiff who, therefore, sues said defendant by said fictitious name.

13. That upon information and belief, at all times hereinafter mentioned, the defendants employed the police officers, mounted police officers, policemen, detectives, handlers, trainers, stable persons, magistrates, clerks, and others hereinafter mentioned in this complaint.

14. That upon information and belief, at all times hereinafter mentioned, the defendants owned, maintained, operated, managed and/or controlled the various police stations, police departments, mounted police precincts, police stables, mounted police units, and others hereinafter mentioned in this complaint.

15. That at all times hereinafter mentioned, the defendant CITY, its agents, servants and/ or employees, owned a certain police horse.

16. That at all times hereinafter mentioned, the defendant CITY, its agents, servants and/ or employees, managed a certain police horse.

17. That at all times hereinafter mentioned, the defendant CITY, its agents, servants and/ or employees, maintained a certain police horse.

18. That at all times hereinafter mentioned, the defendant CITY, its agents, servants and/ or employees, controlled a certain police horse.

19. That at all times hereinafter mentioned, the defendant CITY, its agents, servants and/ or employees, supervised a certain police horse.

20. That at all times hereinafter mentioned, the defendant CITY, its agents, servants and/ or employees, trained a certain police horse.

21. That at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees, owned a certain police horse.

22. That at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees, managed a certain police horse.

23. That at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees, maintained a certain police horse.

24. That at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees, controlled a certain police horse.

25. That at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees, supervised a certain police horse.

26. That at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees, trained a certain police horse.

27. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees owned a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

28. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees maintained a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

29. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees managed a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

30. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees controlled a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

31. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees supervised a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

32. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees trained a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

33. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees mounted for the use thereof a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

34. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees mounted for the use thereof a certain police horse with the knowledge, permission and consent, express or implied, of the defendant CITY.

35. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees mounted for the use thereof a certain police horse with the knowledge, permission and consent, express or implied, of the owner of said horse.

36. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees mounted for the use thereof a certain police horse in the course and scope of their employment.

37. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees mounted for the use thereof a certain police horse in the course and scope of their employment with the defendant CITY.

38. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees operated a certain police horse with the knowledge, permission and/ or consent of the defendant CITY.

39. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees operated a certain police horse with the permission and/ or consent, express or implied, of the defendant CITY.

40. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees operated a certain police horse with the permission and/ or consent, express or implied, of the owner of said horse.

41. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees operated a certain police horse in the course and scope of their employment.

42. That on and prior to November 15, 2014, and at all times hereinafter mentioned, the defendant NYPD, its agents, servants and/ or employees operated a certain police horse in the course and scope of their employment with the defendant CITY.

43. That at all times hereinafter mentioned, the roadways in the vicinity of 120 Orchard Street, in the County, City and State of New York were public roadways and thoroughfares in common use by the residents of the State of New York, and others.

44. That at all times hereinafter mentioned, the plaintiff PERNILLA EKBERG was lawfully present at, near, or in the vicinity of 120 Orchard Street, in the County, City and State of New York.

45. That at all times hereinafter mentioned, the plaintiff PERNILLA EKBERG was lawfully present at, near, in front of, or in the vicinity of the premises and/ or place of business known as Max Fish located at 120 Orchard Street, in the County, City and State of New York.

46. That on November 15, 2014, the defendant NYPD, its agents, servants and/ or employees, managed, maintained, controlled, supervised, mounted, used and operated the said police horse in the vicinity of 120 Orchard Street, in the County, City and State of New York.

47. That on November 15, 2014, the defendant NYPD, its agents, servants and/ or employees, managed, maintained, controlled, supervised, mounted, used and operated the said police horse in the vicinity of the premises and/ or place of business known as Max Fish located at 120 Orchard Street, in the County, City and State of New York.

48. That on November 15, 2014, and prior thereto the aforesaid police horse was known to the defendants herein to be wild, unruly, vicious and possessed a ferocious nature and disposition with a propensity to attack and bite human beings.

49. That on November 15, 2014, while plaintiff PERNILLA EKBERG, was lawfully present at, near or in the vicinity of 120 Orchard Street, in the County, City and State of New York, the aforesaid police horse was caused, allowed and/ or permitted to approach, menace, attack and bite the plaintiff causing her to be severely injured.

50. That on November 15, 2014, while plaintiff PERNILLA EKBERG, was lawfully present at, near, in front of, or in the vicinity of the premises and/ or place of business known as Max Fish located at 120 Orchard Street, in the County, City and State of New York, the aforesaid police horse was caused, allowed and/ or permitted to approach, menace, attack and bite the plaintiff causing her to be severely injured.

51. That by reason of the foregoing, the plaintiff PERNILLA EKBERG, was injured.

52. That the foregoing occurrence and the resulting injuries to the plaintiff PERNILLA EKBERG were caused solely by reason of the carelessness, negligence, wanton and willful disregard on the part of defendants CITY, NYPD, and P.O. JOHN DOE, in wrongfully and unlawfully causing, allowing and/ or permitting said police horse to approach, menace, attack and bite the plaintiff; in failing to train the said police horse; in failing to properly train said police horse; in improperly training said police horse; in failing to restrain said police horse; in improperly restraining said police horse; in failing to supervise said police horse; in failing to

properly supervise said police horse; in improperly supervising said police horse; in failing to monitor said police horse; in failing to properly monitor said police horse; in improperly monitoring said police horse; in failing to safeguard the plaintiff from hazards; in failing to properly safeguard the plaintiff from hazards; in improperly safeguarding the plaintiff from hazards, all without any negligence on the part of the plaintiff contributing thereto.

53. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/ or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and/ or in the future will necessarily suffer additional loss of time and earnings from her employment; and plaintiff will be unable to pursue her duties with the same degree of efficiency as prior to this accident, all to the plaintiff's great damage.

54. That this action falls within one or more of the exceptions set forth in CPLR 1602.

55. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE DEFENDANTS FOR
NEGLIGENT SUPERVISION/ ENTRUSTMENT**

56. The plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

57. That at all times herein mentioned, the defendants employed, trained, managed, controlled, and supervised police officers who were assigned to the mounted unit and were directed to ride police horses on the public streets of New York City as part of their duties.

58. That at all times herein mentioned, it was the duty of the defendant CITY, its agents, servants and/ or employees to supervise and entrust the use of its said horse to suitable, competent, qualified, experienced, trained, diligent and adequate persons.

59. That at all times hereinafter mentioned, it was the duty of the defendant CITY, its agents, servants and/ or employees to properly and adequately supervise and ensure that its said police horse was entrusted, for use and operation as a horse, to persons, who were fit, suitable, properly trained and instructed.

60. That at all times hereinafter mentioned, it was the duty of the said defendant the CITY, its agents, servants and/ or employees to ensure that said horse was not entrusted, for use and operation as a police horse, to a person who constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities or with emotional, physical, psychological and/ or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such police horse.

61. That by reason of the negligence of the said defendant CITY, its agents, servants and/ or employees in negligently supervising and entrusting said police horse to defendant NYPD, its police officers, agents, servants and/ or employees, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing plaintiff extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

62. That at all times herein mentioned, it was the duty of the defendant CITY, its police officers, agents, servants and/ or employees to supervise and entrust the sue of its said police horse to suitable, competent, qualified, experienced, trained, diligent and adequate persons.

63. That at all times herein mentioned, it was the duty of defendant NYPD, its police officers, agents, servants and/ or employees to properly and adequately supervise and ensure that its said police horse was entrusted, for use and operation as a police horse, to persons, who were fit, suitable, properly trained and instructed.

64. That at all times hereinafter mentioned, it was the duty of the said defendant NYPD, its agents, servants and/ or employees to ensure that said police horse was not entrusted, for use and operation as a police horse, to a person who constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities or with emotional, physical, psychological and/ or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such police horse.

65. That by reason of the negligence of the said defendant NYPD, its agents, servants and/ or employees in negligently supervising and entrusting said police horse to the NYPD, its police officers, agents, servants and/ or employees, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing plaintiff extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

66. That by reason of the foregoing, the plaintiff PERNILLA EKBERG has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE DEFENDANTS FOR
STRICT LIABILITY**

67. The plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

68. That on November 15, 2014, and prior thereto the aforesaid police horse was known to the defendants herein to be wild, unruly, vicious and possessed a ferocious nature and disposition with a propensity to attack and bite human beings.

69. That on November 15, 2014, and prior thereto the aforesaid police horse was known to the defendants herein to be of a fierce and vicious nature and likely to attack and bite any person who might come near.

70. That on November 15, 2014, and prior thereto the aforesaid police horse had attacked and bitten other persons prior to said date, as defendants well knew.

71. That on November 15, 2014, and prior thereto, defendants should have known the aforesaid police horse was wild, unruly, vicious and possessed a ferocious nature and disposition with a propensity to attack and bite human beings.

72. That on November 15, 2014, and prior thereto, defendants should have known the aforesaid police horse was of a fierce and vicious nature and likely to attack and bite any person who might come near.

73. That on November 15, 2014, and prior thereto, defendants should have known the aforesaid police horse had attacked and bitten other persons prior to said date.

74. That on November 15, 2014, while plaintiff PERNILLA EKBERG, was lawfully present at, near or in the vicinity of 120 Orchard Street, in the County, City and State of New York, the aforesaid police horse was caused, allowed and/ or permitted to approach, menace, attack and bite the plaintiff causing her to be severely injured.

75. That on November 15, 2014, while plaintiff PERNILLA EKBERG, was lawfully present at, near, in front of, or in the vicinity of the premises and/ or place of business known as Max Fish located at 120 Orchard Street, in the County, City and State of New York, the aforesaid police horse was caused, allowed and/ or permitted to approach, menace, attack and bite the plaintiff causing her to be severely injured.

76. That by allowing the aforesaid police horse, with vicious propensities that defendants knew or should have known of such propensities, to approach, menace, attack and bite the plaintiff, plaintiff was caused to suffer serious personal injuries.

77. That by reason of the foregoing, the plaintiff PERNILLA EKBERG, was injured.

78. All defendants are strictly liable in Tort for plaintiff's injuries and damages because the above-mentioned acts were a substantial factor in bringing about the plaintiff's injuries.

79. All defendant are strictly liable for their actions and omissions as a result of this accident pursuant to applicable laws, statutes and codes of the State and City of New York.

80. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

WHEREFORE, plaintiff PERNILLA EKBERG demands judgment against the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and P.O. JOHN DOE on all Causes of Actions set forth herein in amounts which exceed the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action, together with costs and disbursement of this action, and with interest from the date of this accident.

Dated: August 20, 2015
New York, New York



ELIOT S. BICKOFF
ASTA & ASSOCIATES, P.C.
Attorney for Plaintiff
450 Seventh Avenue, Suite 2205
New York, NY 10123
(212) 244-6555

Verification

STATE OF NEW YORK)

) ss:

COUNTY OF NEW YORK)

Eliot S. Bickoff an attorney duly admitted to practice law in the Courts of this State affirms the truth of the following under penalty of perjury and pursuant to Rule 2106 of the CPLR: I am the attorney of record for the plaintiff herein. I have read the annexed Summons and Verified Complaint, know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, as to those matters I believe them to be true. My knowledge is based upon conversations with the plaintiff and upon records on file in our office.

The reason I make this verification instead of plaintiff, is because said plaintiff is not within the County where my firm maintains its office.

Dated: August 20, 2015
New York, NY



Eliot S. Bickoff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PERNILLA EKBERG

Plaintiff/Petitioner,

- against -

Index No. _____

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, and P.O. JOHN
DOE

Defendant/Respondent.
-----X

NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is being served as required by Subdivision (b) (3) of that Section.

The New York State Courts Electronic Filing System ("NYSCEF") is designed for the electronic filing of documents with the County Clerk and the court and for the electronic service of those documents, court documents, and court notices upon counsel and self-represented parties. Counsel and/or parties who do not notify the court of a claimed exemption (see below) as required by Section 202.5-bb(e) must immediately record their representation within the e-filed matter on the Consent page in NYSCEF. Failure to do so may result in an inability to receive electronic notice of document filings.

Exemptions from mandatory e-filing are limited to: 1) attorneys who certify in good faith that they lack the computer equipment and (along with all employees) the requisite knowledge to comply; and 2) self-represented parties who choose not to participate in e-filing. For additional information about electronic filing, including access to Section 202.5-bb, consult the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@courts.state.ny.us.

Dated: 08/20/15


ELIOT S. BICKOFF, ESQ.

(Signature)

(Name)

ASTA & ASSOCIATES

(Firm Name)

450 SEVENTH AVENUE SUITE
2205 NEW YORK NEW YORK
10123

(Address)

212-244-6555

(Phone)

EBICKOFF@ASTALAW.COM

(E-Mail)

To: _____
